GOVERNMENT RECORDS ACCESS (GRAMA)

Adopted March 5, 2025
Amended July 9, 2025

The Pine Valley Special Service District will designate a member of the board to serve as Records Officer. The Records Officer is required to successfully complete the annual GRAMA training as required by the State of Utah and available on the State Auditor's website.

The PVSSD will follow the most current Utah State law as it relates to GRAMA requests. This policy is based on the law in place when it was adopted.

Records

The District shall maintain records according to the following schedule:

Record	Classification	Retention
Meeting Minutes	Public	Permanent
Meeting Agenda	Public	2 Years
Annual Financial Reports	Public	Permanent
Budgets	Public	Permanent
Bank Statements	Public	4 Years
General Ledger	Public	10 Years
Timesheets	Public	3 Years
Accounts Payable & Receivable	Public	4 Years
Deposit Slips	Public	4 Years
Check Register	Public	7 Years
Receipt Books	Public	3 Years
Fixed Asset Lists	Public	10 Years
Procurement Documents	Public	4 years

A classification is assigned to each record series. There are four classifications defined in the law: public, private, controlled and protected. Only public records are open to the public (note: most records are public). Some record series may have more than one classification.

• Public records are records that are open to everyone. They include:

1. Minutes from open meetings
2. Compensation paid to a contractor
3. Names, gender, and gross compensation paid to public employees, if any,

• Private records are information about individuals that may only be accessed by those individuals and others specified in Utah Code 63G-2-302. They include:

1. Unemployment insurance, social service, and welfare benefits
2. Medical history, diagnosis, condition, treatment, and evaluation
3. Public employee home address, home telephone number, Social Security number, insurance coverage, marital status, or payroll deductions

4. Individual's email, phone number, and payment information maintained by a county for administering property taxes and property tax relief

• Controlled records are records that may only be released to certain individuals such as social workers and health care providers and may not be disclosed to the individual to whom they pertain. They include:

1. Medical, psychiatric, or psychological data
2. Information detrimental to the subject's mental health or to the safety of any individual

• Protected records are non-personal data that may only be released to the person who submitted the information. They include:

1. Trade secrets
2. Closed meeting minutes
3. Records that would jeopardize the life or safety of an individual

Receiving a GRAMA Request

1. The requester shall submit the request to the PVSSD directly, or via the Office of the State Auditor. Records are subject to the classification and retention schedules of the PVSSD. Releasing another entity's record, even if a copy is held by the District, could violate the records classification. A single records request may not be submitted to multiple government entities.
2. The requester is required to complete and submit the District's GRAMA form (included in policy).

Responding to a GRAMA Request

1. The District must respond within 10 business days, or 5 business days for an expedited request.
2. The district may deny the request, if necessary.
3. Failure to respond is considered a denial.
4. The District must notify the requester of extraordinary circumstances, defined as:
    a. Another agency is using the record.
    b. The district is processing a large quantity of records.
    c. The requester asks for a voluminous quantity of records.
    d. The records may be undergoing an audit by a government entity.
5. Appropriate Response to Extraordinary Circumstances
    a. If only part of the records can be located, disclose a portion or provide the requester with an estimate of time required to respond.
    b. Provide the request as soon as reasonably possible.
6. In Response to a Request, the District will
    a. Allow every person the right to inspect a public record free of charge.
    b. Provide electronic copies in lieu of paper if the requestor prefers an electronic copy and the district currently maintains the record in a reproducible electronic format.
    c. Avoid using a physical format to unreasonably hinder access.
7. In Response to a Request, the District is not Required to

a. Compile, format, manipulate, summarize, or tailor records.
b. Provide a record in a format different than normally maintained.
c. Fill the request if the record is available in a public publication.

8. In the interest of security and maintaining the order of records, the requestor is not allowed access to “thumb through” records. Requests should be specific and consistent with District policy

Fees

1. The PVSSD can elect to charge the actual cost of providing a record when it is provided in a form other than normally maintained. Black and white photocopies will be supplied at a cost of $.20 each, color copies at a cost of $.40 each.
2. The District may not charge for
   a. The first 15 minutes of a search.
   b. Allowing the requestor to inspect the record.
   c. Reviewing a record to determine whether it is the subject of a request.
3. The District may charge for the time necessary for the Independent Contractor to retrieve and prepare requested documents at the rate of $25 per hour after one hour.

Denial of Request

If the District denies a request in whole or in part, the Records Officer must provide notice of denial to the requester in writing, using the Districts GRAMA Request and Denial form (included in policy). The notice of denial shall contain a description of the record, citations to the applicable provisions of GRAMA, and a statement that the requester can appeal the denial to the chairman of the District, along with the name and address of the chairman. The District will maintain the record until time limits for appeals have expired.

In determining whether to fulfill a request, the PVSSD board may consider whether the PVSSD msy be able to fulfill the request without unreasonably interfering with the PVSSD and/or PVFD duties and responsibilities.

The PVSSD board may consider whether the board may fulfill the request if the request or is a vexatious requester which may include conduct the PVSSD board constitutes an abuse of the right of access to information. An appeal process is available through Utah Code 63G-2-209, Vexatious Requestor.

Requests for copies of records from the public should be specific and consistent with District policy.

Ombudsman

If the requestor or the Records Officer is unsure, the State Records Ombudsman can assist. They can be reached at 801-531-3858.